

Psychiatric Injury (2)

Topics outline

1. The general exclusionary rule
2. Primary v secondary victims
3. Requirements for primary victims
4. Requirements for secondary victims
5. Employees
6. Summary and critique

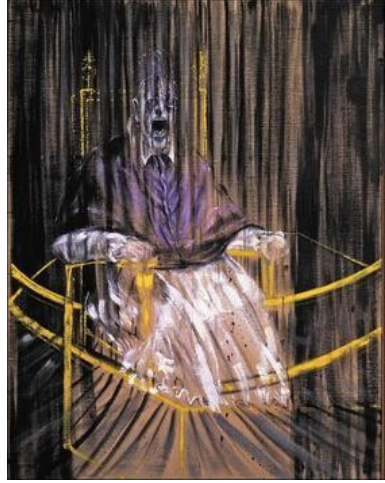


4. Requirements for Secondary Victims (cont.)

The requirements

- A. Recognised psychiatric illness
- B. Foreseeable psychiatric illness in a person of ordinary fortitude
- C. Resulting from an accident
- D. The 3 elements of proximity:
 - i. Close ties of love and affection
 - ii. Proximity in time and space to the accident or its aftermath
 - iii. Sight or hearing of the accident or its aftermath

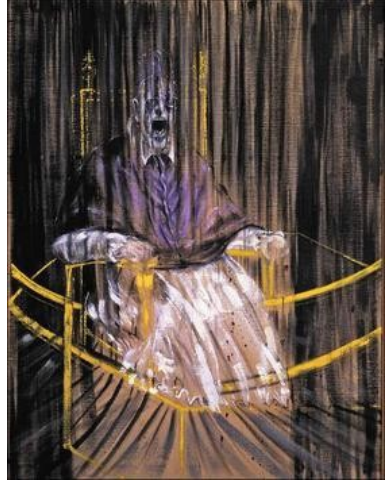
D. The three elements of proximity



“[*Alcock*] established that a person who suffers reasonably foreseeable psychiatric illness as a result of another person's death or injury cannot recover damages unless he can satisfy three requirements: (i) that he had a close tie of love and affection with the person killed, injured or imperilled; (ii) that he was close to the incident in time and space; (iii) that he directly perceived the incident rather than, for example, hearing about it from a third person.”

(*White v CC of S Yorks* [1999] 1 All ER 1, Lord Steyn, p.496)

D(i) Close ties of love and affection



Alcock v Chief Constable of South Yorkshire [1992] 1 AC 388

- ❑ Brothers were *not* close enough, on the facts.
- ❑ Parents and fiancé were close enough.
- ❑ “Whether the degree of love and affection in any given relationship, be it that of relative or friend, is such that the defendant ... should reasonably have foreseen the shock-induced psychiatric illness, has to be decided on a case by case basis.” (Lord Ackner, p.404)
- ❑ “I think it sufficient that reasonable foreseeability should be the guide. I would not seek to limit the class by reference to particular relationships such as husband and wife or parent and child. The kinds of relationship which may involve close ties of love and affection are numerous ...” (Lord Keith, p.397)

D(ii + iii) Proximity in time and space + sight or hearing



McLoughlin v O'Brian [1943] AC 92

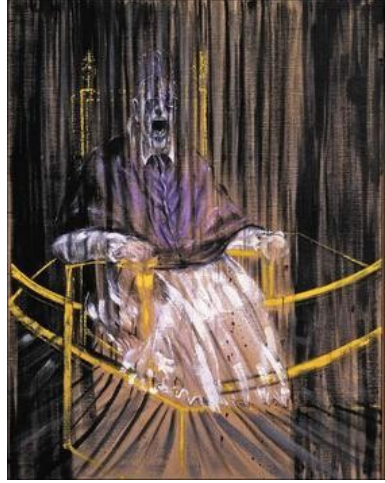
Facts:

- ❑ C's husband and children were in a car accident, in which one daughter was killed.
- ❑ She arrived at the hospital just over 1 hour later, and found her remaining family bruised and covered in grime – in the same condition as they would have been had she found them at the scene of the accident.
- ❑ C developed psychiatric illness.

Held:

- ❑ D owed C a DoC. Although C was not proximate to the accident itself, she did witness its 'immediate aftermath'.

D(ii + iii) Proximity in time and space + sight or hearing

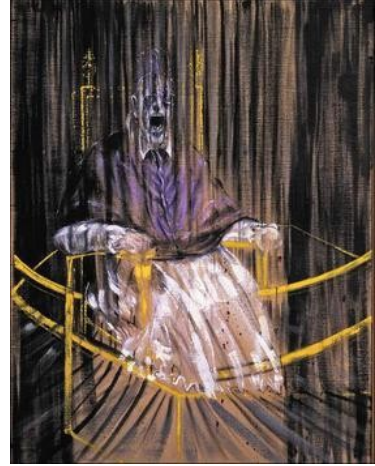


Alcock v Chief Constable of South Yorkshire [1992] 1 AC 388

“The necessary element of proximity between plaintiff and defendant is furnished, at least in part, by both physical and temporal propinquity and also by the sudden and direct visual impression on the plaintiffs mind of actually witnessing the event or its immediate aftermath. To use Lord Wilberforce's words in *McLoughlin's* case [1983] 1 A.C. 410, 422-423: ‘As regards proximity to the accident, it is obvious that this must be close in both time and space. . . . The shock must come through sight or hearing of the event or of its immediate aftermath.’”

(Lord Oliver, p.416)

D(ii + iii) Proximity in time and space + sight or hearing



Alcock v Chief Constable of South Yorkshire [1992] 1 AC 388

- Although the parents and the fiancé had close ties of love and affection, their claims still failed because they only saw the events on TV.
- “the televised images seen by the various plaintiffs cannot be equiparated with ‘sight or hearing of the event.’ ... [T]he shock in each case arose not from the original impact of the transmitted image which did not, as has been pointed out, depict the suffering of recognisable individuals.” (Lord Oliver, p.417)

D(ii + iii) Proximity in time and space + sight or hearing

- ❑ C must see the shocking event itself (or its immediate aftermath), rather than being told about it or seeing the 'general scene'
- ❑ "simultaneous broadcasts of a disaster cannot in all cases be ruled out as providing the equivalent of the actual sight or hearing of the event or its immediate aftermath ... situations could be imagined where the impact of the simultaneous television pictures would be as great, if not greater, than the actual sight of the accident." (Lord Ackner, *Alcock*, p.405)
- ❑ *Taylor v Somerset* [1993] 4 Med. L.R. 34 – Being told of death and seeing a body later is not the same as seeing the accident or its immediate aftermath – no DoC



5. Employees

The requirements

- A. Foreseeable psychiatric illness
- B. Relationship of employment
- C. Psychiatric illness results from stress at work rather than from witnessing the injury of another

White v CC of S Yorks [1998] 2 AC 455 (aka *Frost*)



Facts:

- Cs were police officers at Hillsborough disaster who helped rescue victims, and developed psychiatric illnesses after the event.

Held:

- Cs not primary victims, nor did they meet the secondary victim requirements, nor did their status as employees mean they could recover – no DoC

White v CC of S Yorks [1998] 2 AC 455 (aka *Frost*)



- ❑ There is no special rule for employees when it comes to psychiatric injury caused by witnessing shocking events – if they are to recover, then they must meet the ordinary requirements of primary or secondary victims.
- ❑ BUT ... things are different when an employee's psychiatric injury results not from witnessing shocking events, but from stress at work.
- ❑ “The control mechanisms were plainly never intended to apply to all cases of psychiatric injury. They contemplate that the injury has been caused in consequence of death or injury suffered ... by someone else.” (Lord Hoffmann, p.504)

Hatton v Sutherland

[2002] EWCA Civ 76



- ❑ “There are ... no special control mechanisms applying to claims for psychiatric ... illness arising from the stress of doing the work which the employee is required to do”. (Hale LJ, [22])
- ❑ “The threshold question is whether [psychiatric] harm to this particular employee was reasonably foreseeable ... : this has two components (a) an injury to health (as distinct from occupational stress) which (b) is attributable to stress at work (as distinct from other factors)”. (Hale LJ, [43])
- ❑ “Foreseeability depends upon what the employer knows (or ought reasonably to know) about the individual employee. ... An employer is usually entitled to assume that the employee can withstand the normal pressures of the job unless he knows of some particular problem or vulnerability”. (Hale LJ, [43])

Barber v Somerset CC [2004] UKHL 13



Facts:

- C was a teacher who had been under a lot of stress, which was largely ignored by his employer.

Held:

- D owed C a DoC
- “the Court of Appeal failed to give adequate weight to ... the fact that Mr Barber, an experienced and conscientious teacher, had been off work for three weeks ... with no physical ailment or injury. His absence was certified by his doctor to be due to stress and depression. The senior management team should have made inquiries about his problems and seen what they could do to ease them ... instead of brushing him off unsympathetically ... or sympathising but simply telling him to prioritise his work”. (Lord Walker, [67])



6. Summary and Critique

Cheat sheet

Primary victims

- A. Foreseeable personal injury (or 'unwilling participant')
- B. Recognised psychiatric illness

Secondary victims

- A. Recognised psychiatric illness
- B. Foreseeable psychiatric illness in a person of ordinary fortitude
- C. Resulting from an accident
- D. The 3 elements of proximity

Employees

- A. Foreseeable psychiatric illness
- B. Relationship of employment
- C. Psychiatric illness results from stress at work rather than from witnessing a shocking event

Criticism

“My Lords, the law on the recovery of compensation for pure psychiatric harm is a patchwork quilt of distinctions which are difficult to justify. There are two theoretical solutions. The first is to wipe out recovery in tort for pure psychiatric injury. ... But that would be contrary to precedent ... The second solution is to abolish all the special limiting rules applicable to psychiatric harm. ... Precedent rules out this course ... In my view the only sensible general strategy for the courts is to say thus far and no further. The only prudent course is to treat the pragmatic categories ... as settled for the time being but by and large to leave any expansion or development in this corner of the law to Parliament. In reality there are no refined analytical tools which will enable the courts to draw lines by way of compromise solution in a way which is coherent and morally defensible.”

(Lord Steyn, *White*, p.500)

Criticism

- ❑ “It seems to me that in this area of the law, the search for principle was called off in *Alcock* ... No one can pretend that the existing law, which your Lordships have to accept, is founded upon principle.” (Lord Hoffmann, *White*, p.511)
- ❑ “The control mechanisms now in force are those established in *Alcock*’s case ... These rules, being arbitrary in nature, are widely perceived to create unjust and unacceptable distinctions.” (Lord Goff, *White*, p.487)

Criticism

“We believe that the imposition of all three proximity requirements [in *Alcock*] is unduly restrictive, and that it is the last two limitations that have resulted in the most arbitrary decisions. ... We consider that so long as special control mechanisms over and above foreseeability are required in order to limit the potential number of claimants, the most acceptable method of achieving this is to restrict the claimants by reference [only] to their connection with the immediate victim.”

(Law Commission Report No. 249, para 6.10)

Criticism

“In the context of secondary victims ... the tort of negligence draws distinctions that are difficult to defend. It is arguable that the only truly principled solution, which would avoid any arbitrary line drawing, would be to impose a duty of care where, in general terms, it was reasonably foreseeable that psychiatric illness would be caused to the secondary victim ... But policy concerns ... mean that adoption of that principled solution would constitute a radical and giant leap forward for the common law. For that reason, at the present stage of development, that solution is not a realistic option open to the courts.”

(Lord Burrows, *Paul*, [144])